IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
SPECIAL BENCH

ITEM No. 142
(CAA)-41(PB)/2018

IN THE MATTER OF:
DLF South Point Ltd. and DLF Commercial Developers Ltd. ... Applicant / Petitioner

Under Section 230-232

Order delivered on 11.02.2019

Coram:
CHIEF JUSTICE (RTD.) M. M. KUMAR
HON'BLE PRESIDENT

DR. DEEPTI MUKESH
HON'BLE MEMBER (JUDICIAL)

PRESENTS:

For the Petitioner	Dr. U.K. Chaudhary, Sr. Adv. with Mr. Naveen Dahiya & Mr. Sumit Malhotra, Advs.
For the RD	Mr. C. Balooni, CP
For the OL	Mr. Shubham Pandey, Adv.
For the ITD	Ms. Easha Kadian, Adv. for Ms. Lakshmi Gurung, Standing Counsel for Income Tax Department

ORDER

On 02.01.2019 this Tribunal has passed an order directing the petitioner to file a counter affidavit to show the financial capacity of the company to meet the tax liability or divulge any other means. An affidavit has now been filed on 05.02.2019 with a copy in advance to the counsel for the Income Tax Department. In para 7 of the affidavit the following statement has been made along with undertaking:-

> "In order to further allays the concerns of the Income Tax Department and to satisfy this Hon'ble Tribunal, the holding/parent company i.e. DLF Home Developers Ltd. has also given a separate undertaking stating that if post sanction of the Scheme, the Demerged Company or Resulting Company fails to pay any tax liabilities due and payable in accordance

with law then DLF Home Developers Ltd. shall discharge those liabilities in accordance with law."

Ms. Easha Kadian, for Income Tax Departments states that the affidavit undertaking by the holding company to pay any tax due is considered sufficient by the Income tax Department.

Order reserved.

Sd/-

(M.M. KUMAR)
PRESIDENT

Sd/-

(DR. DEEPTI MUKESH)
MEMBER (JUDICIAL)

11.02.2019
Ritu Sharma